

Form No. INC-33



Form language

☒ English

☐ Hindi

e-MOA (e-Memorandum of Association)

[Pursuant to Schedule I (see Sections 4 and 5) to the Companies Act, 2013]]

Refer instruction kit for filing the form

All fields marked in * are mandatory

* Table applicable to company as notified under schedule I of the Companies Act, 2013

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES

B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING A SHARE CAPITAL

C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING A SHARE CAPITAL

D - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND NOT HAVING SHARE CAPITAL

E - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND HAVING SHARE CAPITAL)

A - MEMORANDUM OF
ASSOCIATION OF A COMPANY
LIMITED BY SHARES

Table A/B/C/D/E

1 The name of the company is

UDHAYA-TECH PRIVATE LIMITED

2 The registered office of the company will be situated in the State of

Tamil Nadu

3 (a) The objects to be pursued by the company on its incorporation are:

1. To carry on the business of Security systems service activities.
2. To carry on the business of Photocopying, duplicating and blueprinting services.
3. To carry on the business of Repair and maintenance of computer and peripheral equipment.

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. To purchase, take on lease or in exchange, hire or otherwise acquire any movable or immovable property and any rights or privileges, licenses or easements, which the Company may think necessary or convenient with reference to any of those objects and capable of being profitably dealt with in connection with any of the Company's property or rights for the time being, and to erect, establish, maintain, improve and work any buildings, office, warehouses, shed, roads, mountain transport services, dams, sluices, water courses and other works and to sell or let out

or mortgage all or any portion of the same as may be thought desirable.

2. To pay all the costs, charges and expenses for the promotion, formation, registration and establishment of the Company and the issue of its capital, including any undertaking or other commission, brokers' Fees and charges in connection therewith, and to remunerate (by cash or other assets or by the allotment of fully or partly paid Shares or Debentures or by a call or option on Shares, Debentures or Securities of this Company or of any other Company or in any other manner, whether out of the Company's capital or profits or otherwise) any person, Firm or Company for services rendered or to be rendered in procuring any property or business to the Company or in placing or guaranteeing the subscription of Shares, Debentures or other Securities of the Company or in or about the formation or promotion of the Company, or for any other reason which the Company may think proper.

3. To apply for, register, purchase or by other means acquire, protect, prolong, or renew, whether in India or elsewhere, any patents, patent rights, Brevets Invention, license, trademarks, designs, protections and concessions, which may appear likely to be advantageous or useful to the Company, and to use and turn to account, and to manufacture under grant licenses or privileges in respect of the same, and to expend moneys in experimenting upon, testing and in improving or seeking to improve any patents, inventions or rights which the Company may acquire or purpose to acquire.

4. To institute, conduct, defend, compound or withdraw any legal proceedings by or against the Company or its officers or otherwise concerning the affairs of the Company, and to pay, satisfy, or compromise any claim

made against the Company or its officers, notwithstanding that the claim may not be valid in law.

5. To be interested in, promote, and undertake the formation and establishment of such institutions, businesses, Companies (industrial, agricultural, trading, and manufacturing or others) as may be considered to be conducive to the profit and interest of the Company.

6. To enter into any agreement with any individual, Firm, Company, Corporation, Institution or Government, whether Indian or Foreign, for any collaboration, technical or otherwise, for imparting or obtaining any technical knowhow, expert advices or information, on such terms and conditions as may deem necessary and expedient.

7. To acquire and undertake the whole or any part of the business, goodwill and assets of any person, Firm, or Company carrying on or proposing to carry on any of the business which this Company is authorized to carry on and as part of the considerations for such acquisition, to undertake all or any of the liabilities of such person, Firm, or Company or to acquire an interest or amalgamate with or enter into partnership or into any arrangement for sharing profit or for co-operation or for limiting competition or for mutual assistance with any such person, Firm or Company, and to give or accept by way of consideration for any of the acts or things aforesaid or property acquired, any Shares, Debentures, Debenture Stock or Securities that may be agreed upon and to hold and retain or sell, mortgage and deal with any Shares, Debentures, Debenture-Stock or Securities so received.

8. To enter into partnership or into any arrangements for sharing profits, amalgamation,

union, of interests, co-operation, joint venture, reciprocal concession or otherwise, with any person, Firm or Company carrying on or engaged in, or about to carry on; and to lend money or guarantee the contracts of or otherwise assist any such person, Firm or Company, and to place, take, or otherwise acquired and hold share or Securities of any such person, Firm or Company, and to sell, hold, re-issue with or without guarantee or otherwise deal with the same.

9. To enter into any arrangements, financial or otherwise, with any Government or State Authority (Supreme, Municipal, Local or otherwise) or any Corporation or Company or person, that may seem conducive to the attainment of the Company's Objects or any of them, and obtain from any such Government, Authority, Corporation, Company or person any charters, decrees, rights, privileges and concessions, which the Company may think desirable, and to carry out, exercise and comply with any charters, decrees, rights, privileges and concessions. 10. To borrow, raise moneys, obtain guarantees by the issue of Bonds, Debentures, convertible or otherwise, and to mortgage, pledge or charge the whole or any part of the property, assets or revenue of the Company, present or future, including its uncalled capital or otherwise, to transfer or convey the same absolutely or in trust, and to give the lenders such powers as may be deemed expedient; and to purchase, redeem or pay off any such Securities within the permissible limit, without doing any banking business as defined in the Banking Regulation Act 1949, or to receive moneys on deposits, with or without interest, within the permissible limit without doing any banking business as defined in the

Banking Regulation Act 1949.

11. To guarantee the payment of the money and the performance of contracts or engagements entered into by any Company or person, and to secure the payment of the money and performance of any contracts or engagements entered into by this or any other Company or person or Firms, and to discharge any debt or other obligation of or binding upon this or any other Company or person, or to secure the same by creating mortgage and charges upon all or any part of the undertaking, property and rights of the Company [either present or future or both] including its uncalled capital or by the creation or issue of Debentures, Debenture Stock or other Securities or by any other means.

12. To advance and lend money to any person, association, Firm or Company, particularly to the Company's customers or those who are associated with the Company, with or without security, wholly or partly secured, on any terms, in any name, upon any description, or property, movable or immovable, existing or future, on Securities, Policies, Shares, Bonds, Debentures, Debenture Stock, Letters of Credit, Promissory Notes, Bills of Lading and other mercantile indicia or tokens, and to deposit money, with or without security, with other Companies person, association of individuals, Firms, Banks or Governments, upon such terms as may be thought proper, and from time to time to vary transactions in such name as the Company may think it.

13. To open any account or accounts with any individual, Firm, Society, Company, Corporation, Banks or Governments, and to pay into or withdraw money from such account or accounts.

14. To improve, manage, work, develop, lease, mortgage,

abandon or otherwise deal with all or any part of the property, rights and concessions of the Company.

15. To apply for, tender, purchase or otherwise acquire any contracts, sub-contracts, licenses and concessions for or in relation to any of the objects of business herein mentioned, and to undertake, sub-contract execute, carry out, dispose of or otherwise turn to account the same.

16. To obtain under any Act of Legislature or Parliament, for enabling the Company to obtain any powers and authorities, necessary or expedient, to carry out or extend any of the objects of the Company, or for any other purposes which may seem expedient, and to oppose any proceedings or applications which may directly or indirectly prejudice the Company's interest.

17. To employ experts to investigate and examine into the condition, prospective value, character and circumstances of any business concerns and undertaking, and generally of any assets, property or rights.

18. To appoint and remunerate Experts, Engineers, Mechanics, Managers, Accountants, Lawyers, Professors, Teachers, Contractors, Brokers, Canvassers, Agents, Artisans, Workmen and other persons, and to establish and maintain Agencies, Branches and Offices in the Indian Union or elsewhere for the purpose of achieving all or any of the objects of the Company or to discontinue the same.

19. To remunerate (by cash or otherwise or by assets or by allotment of fully or partly paid Shares or Shares or any Securities of this Company or any other Company, credited as fully or partly paid up or in any other manner) any persons, Firms, Associations, or Companies for services rendered or to be rendered or for rendering

technical aid and advice, granting licenses or permissions for the use of patents trade secrets, trademarks, processes, or in acting as Trustees for Debenture-Holders or Debenture Stockholders of the Company, or for subscribing or agreeing to subscribe, whether absolutely conditionally, or for procuring or agreeing to procure subscriptions, whether absolute or conditional, for any Shares, Debentures or Debenture Stock, or other Securities of the Company or of any other Company promoted by this Company, or for services rendered in or about the formation of the Company or of any other Company promoted by this Company, or in introducing any party or business to the Company, or about the conduct of the business of this Company, or for guaranteeing payment of such Debenture Stock or other Securities and any interest therein.

20. To establish, join, support or aid in the establishment and support of Associations, Educational Institutions, Hospitals, Funds, Trusts, Governments and conveniences, calculated to benefit employees or ex-employees of the Company or the dependents or the connections of such persons or the public, and to make payment towards insurance and to subscribe, contribute or guarantee money for charitable or benevolent object or for any public or useful object the support of which will, in the opinion of the Company, lead to the increase of its reputation or goodwill among its employees, customers, agents or the public.

21. To provide for the welfare of Directors or employees or ex-employees of the Company or of its predecessors in business, and the wives, widows and families or the dependents or the connections of such Directors, employees or ex-employees, by

building or contributing to the building of houses or dwellings or quarters, or by grants of money, pensions, gratuities, allowances, bonuses, insurances, profit sharing bonuses or benefits or any other payments or by creating and from time to time subscribing or contributing to provident funds, profit sharing or other schemes or trusts, and by providing or subscribing or contributing towards places of instruction and recreation, hospitals and dispensaries, medical and other attendance and other assistance as the Company shall think fit.

22. To procure the Company to be registered or recognized in any part of the world.

23. To pay all preliminary expenses of this Company, or of any Company promoted by the Company, or any Company in which the Company is or may contemplate being interested in, including such preliminary expenses, all or any part of the costs and expenses of owner of any business or property, rights, patents, or privileges acquired by this or any other such Company.

24. To create any Depreciation Fund, Reserve Fund, Sinking Fund, Insurance Fund or any other fund for repairing, improving, extending or maintaining any of the properties of the Company or for redemption of Debentures or Redeemable Preference Shares, or for any other purpose whatsoever, conducive to the interest of the Company.

25. To sell, let, exchange, or otherwise deal with the undertaking of the Company or any part thereof, for such consideration as the Company may think fit, and in particular for Shares, Debentures or Securities of any other Company, and if thought fit to distribute the same among the Shareholders of this Company.

26. To distribute any of the properties of the Company

amongst the members in specie or in cash, either on reduction of capital or on liquidation of the Company, as required by law. 27. To insure the employees and officers of the Company.

28. To insure with any person or Company against losses, damages, risks and liabilities of any kind, which may affect the Company either wholly or partially, and if thought fit, to effect any such insurance by joining or becoming a member of any mutual protection or indemnity association, federation or society, and to accept any such insurance, or any part thereof for the account of the Company.

29. To refer or agree to refer to arbitrations any claim, demand, dispute, legal proceedings or any other question by or against the Company or in which the Company is interested or concerned.

30. To invest and deal with monies of the Company or in its custody in such manner, as may from time to time be determined, and open accounts, overdrafts, and cash credits with or without securities, to keep fixed or other deposits with banks, loan to other concerns, to buy, sell exchange, hold and transfer Shares, Stocks or Debentures of Joint Stock Companies, local or foreign, securities and loans of Government, Indian or Foreign, or any Provincial Government or any Government of Native States of India, Debentures, Loans or Securities of Municipalities, District Boards, Local or Taluk Boards, Corporation or Public Bodies, Railways, Tramways, Port Trust, Improvement Trust, and all other Securities of similar nature.

31. To draw, accept and make, and to endorse, discount and negotiate Promissory Notes, Hundies, Bills of Exchange, Bills of Lading and all negotiable instruments connected with the business of the Company.

32. Subject to the provisions of Section 52 of the Companies Act, 2013, to place, to reserve or to distribute as dividend or bonus among the members or otherwise to apply, as the Company from time to time may think fit, any moneys received by way of premium on Shares or Debentures issued at a premium by the Company and any moneys received in respect of dividends accrued on forfeited Shares and moneys arising from the sale by the Company of forfeited Shares.

33. To Sell the Company as going concern.

4 The liability of the member(s) is limited, and this liability is limited to the amount unpaid if any, on the shares held by them.

5 Every member of the company undertakes to contribute:

(i) to the assets of the company in the event of its being wound up while he is a member, or within one year after he ceases to be a member, for payment of the debts and liabilities of the company or of such debts and liabilities as may have been contracted before he ceases to be a member; and

(ii) to the costs, charges and expenses of winding up (and for the adjustment of the rights of the contributories among themselves), such amount as may be required, not exceeding * rupees.

(iii) The share capital of the company is rupees, divided into

10000	Equity Share	Shares of	100	Rupees each	
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☐ We, the several persons, whose names and address are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association, and we respectively agree to take the number of shares in the capital of the company set against our respective names:

☐ I, whose name and address is given below, am desirous of forming a company in pursuance of this memorandum of association and agree to take all the shares in the capital of the company:

☐ We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details

S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of shares taken	DSC	Dated
1	KAVIYASELVI RAMESH 1 KALAI MAIN ROAD MOONGILTHURAIPATTU Tiruvannamalai Tamil Nadu 605702 Moongilthuraipattu Tiruvannamalai India	H*B*R*9*4*	100 Equity,0 Preference		17/10/2025
2	UDHAYASURIYAN RAMESH 1, KALAI MAIN ROAD MOONGILTHURAIPATTU NEAR DARLING SHOWROOM Tiruvannamalai Tamil Nadu 605702 Moongilthuraipattu Tiruvannamalai India	C*U*R*0*2*	900 Equity,0 Preference		17/10/2025
Total shares taken			1000 Equity,0 Preference		

Signed before me

Membership type of the witness (ACA/FCA/ACS/FCS/ACMA/FCMA)	*Name of the witness	*Address, Description and Occupation	DIN / PAN / Passport number / Membership number	DSC	Dated
FCA	MOTI PHILIP	No.6, 3rd Street, Railway colony, Chennai-600030. Chartered Accountant	0*2*8*		17/10/2025

7 Shri / Smt Of resident of

aged years shall be the nominee in the event of death of the sole member.